

# STATE OF NEW YORK

---

8472--B

2025-2026 Regular Sessions

## IN ASSEMBLY

May 16, 2025

---

Introduced by M. of A. WOERNER, PAULIN, BUTTENSCHON, McDONALD -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to establishing a temporary practice authorization program for certain medical professionals to practice in underserved areas; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 6907 of the education law, as amended by chapter  
2 994 of the laws of 1971 and as renumbered by chapter 50 of the laws of  
3 1972, subdivision 2 as amended by chapter 315 of the laws of 1981,  
4 subdivision 4 as amended by chapter 62 of the laws of 1989 and subdivi-  
5 sion 5 as amended by chapter 110 of the laws of 1972, is amended to read  
6 as follows:

7 § 6907. Limited permits. 1. Graduate nurses. (a) A permit to practice  
8 as a registered professional nurse or a permit to practice as a licensed  
9 practical nurse may be issued by the department upon the filing of an  
10 application for a license as a registered professional nurse or as a  
11 licensed practical nurse and submission of such other information as the  
12 department may require to (i) graduates of schools of nursing registered  
13 by the department, (ii) graduates of schools of nursing approved in  
14 another state, province, or country or (iii) applicants for a license in  
15 practical nursing whose preparation is determined by the department to  
16 be the equivalent of that required in this state.

17 ~~[2-]~~ (b) Such limited permit shall expire one year from the date of  
18 issuance or upon notice to the applicant by the department that the  
19 application for license has been denied, or ten days after notification  
20 to the applicant of failure on the professional licensing examination,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[~~-~~] is old law to be omitted.

LBD11922-07-5

1 whichever shall first occur. Notwithstanding the foregoing provisions  
2 of this ~~[subdivision]~~ paragraph, if the applicant is waiting the result  
3 of a licensing examination at the time such limited permit expires, such  
4 permit shall continue to be valid until ten days after notification to  
5 the applicant of the results of such examination.

6 ~~[3-]~~ (c) A limited permit shall entitle the holder to practice nursing  
7 only under the supervision of a nurse currently registered in this state  
8 and with the endorsement of the employing agency.

9 ~~[4--Fees-]~~ (d) The fee for each limited permit shall be thirty-five  
10 dollars.

11 ~~[5-]~~ (e) Graduates of schools of nursing registered by the department  
12 may be employed to practice nursing under supervision of a professional  
13 nurse currently registered in this state and with the endorsement of the  
14 employing agency for ninety days immediately following graduation from a  
15 program in nursing and pending receipt of a limited permit for which an  
16 application has been filed as provided in this section.

17 2. Temporary practice authorization program. (a) There is hereby  
18 established a temporary practice authorization program for the purpose  
19 of allowing the temporary practice of registered professional nurses and  
20 licensed practical nurses in a county or facility designated by the  
21 federal government as medically underserved. Provided, however, that an  
22 individual who becomes licensed through the temporary practice authori-  
23 zation program must live in New York state and commit to work for a  
24 entity for which they were temporarily authorized to practice for a  
25 period of no less than three years upon such applicant becoming perma-  
26 ently licensed.

27 (b) Registered professional nurse or licensed practical nurse. (i) A  
28 person who is currently licensed and in good standing in another state  
29 or territory of the United States to practice as a registered profes-  
30 sional nurse or a licensed practical nurse may be temporarily authorized  
31 to practice such licensed profession pursuant to this article pending a  
32 determination on licensure for which an application has been filed  
33 pursuant to this article, provided: (1) such applicant has obtained the  
34 endorsement of an employing health care facility that is authorized to  
35 provide professional nursing services; (2) the position is located with-  
36 in a county or facility designated by the federal government as  
37 medically underserved; and (3) the applicant is not employed by an  
38 employment agency as defined in subdivision two of section one hundred  
39 seventy-one of the general business law.

40 (ii) Prior to commencing practice, the applicant and an authorized  
41 representative of the employing facility shall jointly provide written  
42 notice to the department, in a form and format acceptable to the depart-  
43 ment that the applicant intends to practice in a county or facility  
44 designated by the federal government as medically underserved and the  
45 applicant shall pay a fee determined by the department. Such written  
46 notification shall also include an attestation by the applicant and the  
47 authorized representative of the employing facility that they have  
48 reviewed the requirements for licensure in New York state and that they  
49 reasonably believe such applicant to meet such requirements. Such tempo-  
50 rary authorization shall only be applied for once and shall be granted  
51 upon receipt of such notice and attestation and the payment of such fee  
52 and shall expire in one hundred eighty days, or ten days after notifica-  
53 tion that the applicant does not meet the qualifications for licensure  
54 as a registered professional nurse or licensed practical nurse, whichev-  
55 er shall occur first.

(iii) The department may deny an application submitted pursuant to this section if the department determines that the employing facility demonstrates a pattern of endorsing applicants for temporary authorization who cannot become fully licensed because they do not meet the requirements for licensure.

3. Any person practicing as a registered nurse or licensed practical nurse in New York state pursuant to this section shall be subject to the personal and subject matter jurisdiction and disciplinary and regulatory authority of the board of regents as if such person is a licensee and as if the temporary authorization pursuant to this section is a license. Such person shall comply with applicable provisions of this title and the rules of the board of regents relating to professional practice, professional misconduct, disciplinary proceedings and penalties for professional misconduct. Failure to adhere to the notification provisions of this section may be considered unauthorized practice pursuant to section sixty-five hundred twelve of this title.

§ 2. Section 6525 of the education law, as added by chapter 987 of the laws of 1971, paragraph 1 of subdivision 1 as amended by chapter 133 of the laws of 1982 and subdivision 4 as amended by chapter 62 of the laws of 1989, is amended to read as follows:

§ 6525. Limited permits. 1. Physicians. Permits limited as to eligibility, practice and duration, shall be issued by the department to eligible applicants, as follows:

~~[1-]~~ (a) Eligibility~~[+]~~. The following persons shall be eligible for a limited permit:

~~[(1+)]~~ (i) A person who fulfills all requirements for a license as a physician except those relating to the examination and citizenship or permanent residence in the United States;

~~[(2+)]~~ (ii) A foreign physician who holds a standard certificate from the educational council for foreign medical graduates or who has passed an examination satisfactory to the state board for medicine and in accordance with the commissioner's regulations; or

~~[(3+)]~~ (iii) A foreign physician or a foreign intern who is in this country on a non-immigration visa for the continuation of medical study, pursuant to the exchange student program of the United States department of state.

~~[2-]~~ (b) Limit of practice. A permittee shall be authorized to practice medicine only under the supervision of a licensed physician and only in a public, voluntary, or proprietary hospital.

~~[3-]~~ (c) Duration. A limited permit shall be valid for two years. It may be renewed biennially at the discretion of the department.

~~[4-]~~ (d) Fees. The fee for each limited permit and for each renewal shall be ~~[one hundred five dollars]~~ as determined by the department.

2. Temporary practice authorization program. (a) There is hereby established a temporary practice authorization program for the purpose of allowing the temporary practice of medicine in a county or facility designated by the federal government as medically underserved.

(b) A person who is currently licensed and in good standing in another state or territory of the United States to practice medicine may be temporarily authorized to practice medicine pursuant to this chapter under the supervision of a New York state licensed physician, pending a determination on licensure for which an application has been filed pursuant to section sixty-five hundred twenty-four of this article, provided: (i) such applicant has obtained the endorsement of an employing health care facility that is authorized by New York state law to provide medical services; (ii) the position is located within a county

1 or facility designated by the federal government as medically under-  
2 served; (iii) the applicant has graduated from a duly accredited school  
3 of medicine located in the United States or Canada; (iv) such applicant  
4 is currently board certified by a physician certification board accepta-  
5 ble to the department; and (v) the applicant is not employed by an  
6 employment agency as defined in subdivision two of section one hundred  
7 seventy-one of the general business law.

8 (c) Prior to commencing practice, the applicant and supervising physi-  
9 cian shall jointly provide written notification to the department, in a  
10 form and format acceptable to the department, that such applicant  
11 intends to practice in a county or facility designated by the federal  
12 government as medically underserved and the applicant shall pay a fee  
13 determined by the department. Such written notification shall also  
14 include an attestation by the applicant and the supervising physician  
15 that they have reviewed the requirements for licensure in New York state  
16 and that they reasonably believe such applicant to meet such require-  
17 ments. Such temporary authorization shall only be applied for once and  
18 shall be granted upon receipt of such notice and attestation and the  
19 payment of such fee and shall expire in one hundred eighty days or ten  
20 days after notification that the applicant does not meet the qualifica-  
21 tions for licensure as a physician, whichever shall occur first.

22 (d) The department may deny an application submitted pursuant to this  
23 section if the department determines that the supervising physician or  
24 employing organization demonstrates a pattern of endorsing applicants  
25 for temporary authorization who cannot become fully licensed because  
26 they do not meet the requirements for licensure.

27 (e) Any person practicing as a physician in New York state pursuant to  
28 this subdivision shall be subject to the personal and subject matter  
29 jurisdiction and disciplinary and regulatory authority of the board of  
30 regents and the state board for professional medical conduct established  
31 pursuant to section two hundred thirty of the public health law as if  
32 they were a licensee and as if the authorization pursuant to this subdivi-  
33 sion were a license. Such physician shall comply with applicable  
34 provisions of this title, the public health law, the rules of the board  
35 of regents, the state board for professional medical conduct established  
36 pursuant to section two hundred thirty of the public health law, and the  
37 regulations of the commissioner and the commissioner of health, relating  
38 to professional misconduct, disciplinary proceedings and penalties for  
39 professional misconduct. Failure to adhere to the notification  
40 provisions of this subdivision may be considered unauthorized practice  
41 pursuant to section sixty-five hundred twelve of this title.

42 (f) An individual who becomes licensed through the temporary practice  
43 authorization program must live in New York state and commit to work for  
44 the entity for which they were temporarily authorized to practice for a  
45 period of no less than three years upon such applicant becoming perma-  
46 nently licensed.

47 § 3. Not later than June thirtieth of the second year following the  
48 effective date of this act, the commissioner of education shall provide  
49 the governor, the temporary president of the senate, the minority leader  
50 of the senate, the speaker of the assembly, the minority leader of the  
51 assembly, the chair of the senate standing committee on higher educa-  
52 tion, and the chair of the assembly committee on higher education with a  
53 report of the program established by this act. Such report shall, at a  
54 minimum, include the number of temporary authorizations granted by  
55 region or setting and the number and rate of conversion of temporary

1 authorizations which became full licenses. The report shall be made  
2 publicly available on the department of education's website.  
3 § 4. This act shall take effect on the one hundred eightieth day after  
4 it shall have become a law and shall expire 3 years after such effective  
5 date when upon such date the provisions of this act shall be deemed  
6 repealed. Effective immediately, the addition, amendment and/or repeal  
7 of any rule or regulation necessary for the implementation of this act  
8 on its effective date are authorized to be made and completed on or  
9 before such effective date.